

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Tuesday, September 08, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, September 08, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-00237	Derek Morris, et al. vs Foster Farms, LLC
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Review of Case Status

Appearance required. The Court has reviewed Plaintiff's compliance statement filed August 24, 2026. Appear to confirm whether any further court hearings are required.

22CV-00736	Amelia Maldonado vs City of Los Banos, et al.
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Petition for Minor's Compromise

The petition for approval of the minor's compromise is GRANTED.

Petitioner is to file a pre-filled MC-351 form for this Court's signature.

A status conference is set for January 7, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of the funding of the annuity.

If Petitioner files the receipt or proof of purchase of the annuity at least five (5) court days before the hearing, the status conference will come off calendar.

24CV-01383 Aldevaran Yoalli Mendoza Cuevas vs Jo Ann Mitts-Jurovich, et al.

Motion to be Relieved as Counsel

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

Counsel's declaration states that the client's current address is currently unknown. As such, although counsel's attached declaration contains the information, No. 3(b)(2) of the attorney's declaration on form MC-052 must be filled out. In addition, No. 6 on form MC-053 must contain the client's last known address and telephone number, and No. 7 must include the next hearing date. If at the time of refiling the client's address continues to be unknown, service of the order must be made according to Code of Civil Procedure section 1011, subdivision (b) and Rules of Court, rule 3.252.

24CV-03145 Kristen Sumrall, et al. vs Stephen Sumrall, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the declaration of Mateo Rendon Salazar, filed August 31, 2026, to December 15, 2026, at 8:15 a.m. in Courtroom 8, for remaining settlement procedures to be completed.

25CV-00983 Davin McCarty vs Dobbins Transportation

Motion for Final Approval of Class Action Settlement

The motion for final approval of class action settlement is GRANTED.

The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has happened since the Court made its order that would cause it to change its determination.

The date of final accounting is set for June 4, 2027, at 8:15 a.m. in Courtroom 8.

The Court will sign the proposed order lodged with the court on August 14, 2026.

25CV-05677 Vanessa Marin Hernandez vs Emerald Textiles Services Northern California, LLC

Review of Case Status Re: Binding Arbitration

Appearance required. Appear to update the court on the status of arbitration proceedings.

Motion for Attorney's Fees, Costs, and Expenses

Plaintiff's motion for attorney's fees is GRANTED.

Attorney's fees are awarded in the amount of \$9,782.50. Costs are awarded in the amount of \$2,662.95.

Plaintiff seeks to set the lodestar at \$26,271.50, inclusive of attorney's fees to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. In addition, Plaintiff seeks a lodestar multiplier of 1.25, enhancing the lodestar of \$26,271.50 to \$31,839.38. Plaintiff also seeks costs in the amount of \$2,662.95.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the market place, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Plaintiff's counsel claims an hourly rate of \$445 for the attorney and \$135 for the paralegal. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Accordingly, the court finds it reasonable to set the hourly rate of counsel at \$350 /hour and the paralegal rate at \$125 /hour.

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the attorney time billed is excessive and includes administrative and overhead billing, and therefore finds it reasonable to reduce the hours billed.

The Court finds it reasonable to reduce the total attorney time of 51.4 hours by 24.2 hours, as the Court finds 27.2 hours to be the number of hours reasonably expended. The Court finds the hours claimed by the paralegal to be reasonable.

This results in a lodestar of \$9,782.50. This represents 27.2 hours at \$350 /hour and 2.1 hours at \$125 /hour. Based on the above, the Court sets the lodestar at \$9,782.50.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other

employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

However, our own California Supreme Court has stated, “the trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. [emphasis original].) This matter was a straightforward lemon law action that was resolved early in litigation. As such, the Court does not find that a lodestar enhancement is appropriate.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$9,782.50.

Plaintiff’s memorandum of costs seeks total costs in the amount of \$2,662.95. Defendant seeks to tax the costs in their entirety for Plaintiff’s failure to file a memorandum of costs and for failure to provide support for the claimed costs. Forms MC-010 and MC-011 are optional forms. The memorandum of costs on pleading paper is acceptable. Further, once the verified memorandum of costs is filed it serves as prima facie evidence of the reasonableness of the costs listed. The burden is then of the opposing party to challenge the costs. Here, Defendant did not directly challenge the costs. As such, the request to tax costs is denied. Accordingly, costs are awarded in the amount of \$2,662.95.

Plaintiff is awarded total attorney fees and costs in the amount of \$12,445.45.

Attorney fees and costs are to be paid within thirty (30) days of this Court’s order.

26CV-04534 Elizabeth Nunez vs Evergreen Capital, LLC

Order to Show Cause

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Jury Trials/Long Cause Court Trial
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, September 08, 2026
9:00 a.m.

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Case No.	Title / Description
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22CV-01458	Richard Morales, Junior vs General Motors LLC
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the notice of settlement filed August 31, 2026, to December 4, 2026, at 8:15 a.m. in Courtroom 8, to allow time for the terms of the conditional settlement to be performed.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/ Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, September 08, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-00012	Bruce Austin vs Infinity Management and Investments, LLC, et al.
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Motion to Advance and Re-Set Case Management Conference; and for Relief from Non-Appearance

Plaintiff's motion to advance and reset the case management conference and for relief from non-appearance is DENIED.

All case management conferences are set in Courtroom 8 and the hearing dates are set by the court based on the court's calendar.

The request for relief from non-appearance is denied as moot. The court did not issue an OSC for the non-appearance. Therefore, there is no need for relief.

The request for all future notices by the court to be served by both U.S. mail and electronic service is denied. Plaintiff is only entitled to one form of service by the court. Electronic service is a substitute for mail service and not a supplement. Plaintiff does have the right to request electronic service in place of mail service, but must file with the court form EFS-005-CV or a substantially similar document.

26CV-03993

Petition of: Javier Serrano

Court Trial

Appearance required.

26CV-04260

Petition of: Stephanie Torres

Order to Show Cause Re: Name Change

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Unlawful Detainer
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, September 08, 2026
2:00 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-04161	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Court Trial: Unlawful Detainer

Appearance required.

26CV-04601	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Hearing: Other Re: Fee Waiver

Appearance required.
